

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

PATRICK WALKER

Plaintiff(s),

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and DETECTIVE
TYRONE MEDEROS, an employee of the NEW
YORK CITY POLICE DEPARTMENT, POLICE
OFFICER "JOHN DOE" and POLICE OFFICER
"JOHN DOE#2", employees of the NEW
YORK CITY POLICE DEPARTMENT

Defendant(s).

-----X Index No.:

SUMMONS

Plaintiff designates Bronx
County
as place of trial.

The basis of venue is Plaintiff
resides in Bronx County.

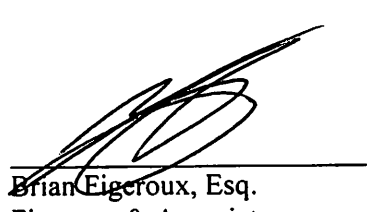
Plaintiff resides at 2558 Stedman
Place, Bronx, NY 10469

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To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner.

In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: October 30, 2017
Brooklyn, NY



Brian Figeroux, Esq.
Figeroux & Associates
26 Court Street, Suite 701
Brooklyn, NY 11242
(718) 834-0910

TO: COMPTROLLER OF THE CITY OF NEW YORK
Municipal Building
One Center Street, 12th Floor
New York, NY 10007

Or:
New York City Law Department
100 Church Street, 7th FL
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX=====X
PATRICK WALKER

Index No.

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and DETECTIVE TYRONE MEDEROS,
an employee of the NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER "JOHN DOE" and POLICE OFFICER "JOHN DOE#2"
Employees of the NEW YORK CITY POLICE DEPARTMENT

Defendant (s)

=====X

Plaintiff, PATRICK WALKER, by his attorney, FIGEROUX & ASSOCIATES,
complaining of Defendants respectfully alleges upon information and belief:

PARTIES

1. Plaintiff, PATRICK WALKER, was and still is, a resident of County of Bronx, City of Bronx and State of New York.
2. Upon information and belief, at all times hereinafter mentioned, Plaintiff, PATRICK WALKER was and still is a resident of the County of Bronx, City and State of New York.
3. Plaintiff, PARTICK WALKER, is a black male, a model citizen of the United States, and at all relevant times a resident of the State of New York.
4. At all times hereinafter mentioned, upon information and belief, the Defendant, THE CITY OF NEW YORK, was and still is a domestic municipal corporation, duly organized and existing under the laws of the State of New York. THE CITY OF NEW YORK has established and maintains THE NEW YORK CITY POLICE DEPARTMENT as an agency of THE CITY OF NEW YORK and is a named Defendant herein.

PROCEDURAL HISTORY

5. On or about December 29, 2016, and within 90 days after the claim sued upon arose, Plaintiff caused a notice of claim to be served upon THE CITY OF NEW YORK AND THE

NEW YORK CITY POLICE DEPARTMENT by delivering personally a copy of thereof in duplicate the Comptroller's office, City of New York. The notice of Claim set forth in duplicate to the and the manner in which claim arose and the items of damage or injuries claimed to have been sustained insofar as was then practicable. *A copy of the notice of claim is hereby annexed as exhibit A.*

6. On April 17, 2017, a 50h Municipal Hearing was held in this matter.

7. At least 18 days have elapsed prior to the commencement of this action and since the service of the notice of claim, the 50H Municipal Hearing and no adjustment or repayment thereof has claim within one year and 90 days after the happening of the event upon which the claim is based.

FACTUAL BACKGROUND

8. At all times hereinafter, Plaintiff is a tenant of real property with improvements located at 2558 Stedman Place, Bronx, NY 10469.

9. Upon information and belief on or about the 8th day of October 2016 at approximately 10:30 am Plaintiff saw (3) three unknown males, leaving his apartment located at the 2558 Stedman Place, Bronx, NY 10467, with personal property belonging to Plaintiff.

10. Upon information and belief, Plaintiff then discovered that the doors to his garage and the door to his vehicle that was parked inside the garage of said location, were all forcefully broken into without his consent.

11. At all times hereinafter mentioned, Plaintiff did not consent or authorize anyone to remove, alter or destroy his personal belongings from said premises.

12. Upon information and belief, Plaintiff approached the three unknown males and confronted them as to reasons for removing his personal belongings, but they nevertheless continued to remove Plaintiff's personal belongings and placed them into a red Volkswagen parked in front of the Plaintiff's premises.

13. Upon information and belief, Plaintiff caused to summon the New York City Department to render assistance in preventing a crime that was being committed against the Plaintiff.

14. The Defendants and their agents, Sergeant Tyrone Mederos, arrived at the scene / Plaintiff's residence and failed to arrest the three unknown males who removed, damaged and/or

destroyed Plaintiff's personal belonging, valued in the amount of \$50,000.00.

15. Upon information and belief, the Defendants and their agents, Sergeant Tyrone Mederos approached the three males, and was informed that they were authorized agents of the "Bank," also known as FEDERAL NATIONAL MORTGAGE ASSOCIATION, a financial institution engaged in a foreclosure proceeding.

16. After communicating with the three unknown males, the Defendants and their agents, Sergeant Tyrone Mederos advised the Plaintiff that they were not arresting anyone because the men were agents of the Bank and this was a private matter.

17. At all material times hereinafter mentioned, Defendants and their agents, Sergeant Mederos, failed to affect a lawful arrest of the three unknown men, who broke and entered Plaintiff premises without any lawful justification or excuse.

18. At all material times hereinafter mentioned, Defendants and their agents, Sergeant Mederos, failed to affect a lawful arrest of the three unknown men, who claimed to be representative of the Bank, despite the absence of a Marshall's notice or warrant of eviction.

19. As a result, Plaintiff suffered extensive damage and loss of property in the amount of \$50,000.00.

20. The Defendants and their agents, Sergeant Tyrone Mederos failed to intervene in the obviously illegal actions committed against the Plaintiff.

21. The Defendant(s), so negligently, hired and retention and negligent supervision, intentional infliction of emotional distress, negligence, negligent supervision, resulting in permanent damage to property valued in excess of \$50,000.00, and betrayal of trust, which will have lifelong effects upon Plaintiff.

**FIRST CAUSE OF ACTION OF PLAINTIFF, NEGLIGENT
FAILURE TO EFFECT A LAWFUL ARREST**

22. Plaintiff repeats and re- alleges the allegations of Paragraphs "1" through "21" of the Complaint as it fully set forth herein.

23. The encounter and the resulting damage to Plaintiff's personal property, was caused by reason of the Defendants' failure and/or refusal to effect a lawful arrest of individuals who blatantly committed a crime against the Plaintiff.

24. Defendant, DETECTIVE TYRONE MEDEROS while acting as an agent and employee for the Defendant CITY OF NEW YORK, owed a duty to Plaintiff to perform his duties and failed to protect Plaintiff from being subjected to ongoing criminal activities.

25. Defendant, DETECTIVE TYRONE MEDEROS while acting as an agent and employee for the Defendant CITY OF NEW YORK, owed a duty to Plaintiff to perform his duties and failed to provide adequate police protection to Plaintiff that resulted in extensive loss of property.

26. As a result of the Negligence of the Defendant (s) in failing to render effective police service, Plaintiff, sustained serious damage and loss of property.

27. This action falls within one or more of the exceptions as set forth in CPLR Section 1602.

28. By reason of the foregoing, Plaintiff, has been damaged in the sum which after the adjustments and calculations expected to be printed by the application of Article 50-B of the CPLR exceeds the jurisdictional limited of all lower courts which would otherwise have jurisdiction.

29. As a direct and proximate result of the negligence of the defendant(s), the Plaintiff, suffered and continues to suffer loss of property and has been otherwise damaged in an amount the sum which after the adjustments and calculations expected to be required by the Application of Article 50 B of the Civil Practice Law and Rules exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION OF PLAINTIFF NEGLIGENT ENTRUSTMENT

30. Plaintiff repeats and re- alleges the allegations of Paragraphs "1" through "29" of the Complaint as it fully set forth herein.

31. The failure of the Defendant (s) to exercise reasonable care was a direct and proximate cause of the injuries and loss suffered by the Plaintiff in an amount of the sum which after the adjustments and calculations expected to be required by the Application of the Article 50- B of the Civil Practice Law and Rules exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction.

32. The above mentioned occurrence and the result thereof were caused by the joint, several and concurrent negligence of the Defendants (s) so negligently, hired and retention and

negligent supervision, intentional infliction of emotional distress, negligence, negligent supervision, resulting in permanent loss of property and betrayal of trust, which will have lifelong effects upon Plaintiff.

33. That no negligence on the part of the Plaintiff, contributed to the occurrence alleged hereon in any manner whatsoever.

34. That as a result of the foregoing, the Plaintiff, was damaged in an amount of the sum which after the adjustments and calculations expected to be required by the Application of the Article 50- B of the Civil Practice Law and Rules exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands Judgment against the Defendants jointly and severally, as follows:

- a) On the First through the Third Causes of Action, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- b) Awarding the Plaintiff interests, costs and disbursements in this action;
- c) Granting such other and further relief as this Court may deem just and proper.

JURY DEMAND

Plaintiff demands a trial by jury

Dated: 30th October, 2017
Brooklyn, New York

Respectfully Yours'



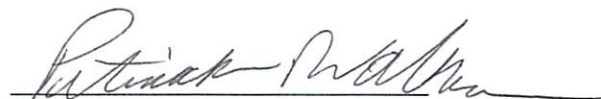
BRIAN FIGEROUX, Esq.
Attorney for the Plaintiff
PATRICK WALKER
FIGEROUX & ASSOCIATES
26 Court Street, Suite 701
Brooklyn, NY 11242
718-834-0190.

VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF KINGS)

PATRICK WALKER, being duly sworn, deposes and says that the deponent is the Plaintiff in this action and has read this Verified Complaint & Summons and knows its contents to be true to the best of deponent's knowledge, except as to those matters stated to be alleged upon information and belief and as to those matters, deponent believes them to be true.

Dated: 30th October, 2017
Brooklyn, NY


PATRICK WALKER

Sworn to before me on this
30th day of October, 2017

NOTARY PUBLIC


BRIAN FIGEROUX
NOTARY PUBLIC, State of New York
No. 02FI5049815
Qualified in Kings County
Commission Expires September 25, 2021

EXHIBIT “A”

OFFICE OF THE COMPTROLLER CITY OF NEW YORK

NOTICE OF CLAIMCLAIMANT INFORMATION

CLAIMANT'S NAME:

PATRICK WALKER

TEL. NO.:

(786) 691-9733

STREET ADDRESS:

2558 STEDMAN PLACE, BRONX NY 10469CITY: BRONXSTATE: NEW YORKZIP: 10469

SOC. SEC NO.:

CLAIM INFORMATION

CITY AGENCY INVOLVED:

COMPTROLLER OF THE CITY OF NEW YORK

Municipal Building

One Centre Street

12th Floor

New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza

New York, New York 10007

NATURE OF CLAIM: (ATTACH ADDITIONAL SHEET(S) OF PAPER, IF NECESSARY)

Nature of claim: The nature of the claim is for compensatory and exemplary damages resulting in loss of property arising from the negligent failure to prevent a crime committed against **PATRICK WALKER** at his place of residence at 2558 Stedman Place, Bronx, NY 10469; negligent failure to intervene to prevent the violation of PATRICK WALKER's Fourth Amendment rights at the instance of private citizens allegedly working under the auspices of the NYPD; Negligent failure to provide adequate police services to **PATRICK WALKER** at his residence located at 2558 Stedman Place, Bronx, NY 10469 when his personal property was confiscated by private citizens, agents of the NYPD; negligent failure to effect an arrest on private individuals, agents of the NYPD who violated **PATRICK WALKER'S** Fourth Amendment rights by seizing property belong to him and all other damages allowed under statute and case law as a result of the negligence, carelessness and recklessness of THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT, and their agents, servants, employees and those acting under their direction, behest, permission and control in the ownership, operation, management, supervision and control of THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT.

The time when, the place where and the manner in which the claim arose: The incident arose on or about October 8, 2016 at approximately 11am, when claimant observed three unknown males removing his personal property valued at \$50,000.00 from his apartment and garage area located at 2558 Stedman Place, Bronx, New York, 10469; Claimant immediately called 911. NYPD officers and Sergeant "JOHN DOE" arrived at said location and failed conduct a proper investigation into the circumstances of criminal activity afoot which resulted in loss of property. Further, the NYPD Officers AND Sergeant "JOHN DOE" failed to effect a valid arrest of unknown individuals who were trespassing on claimant's property. Further, NYPD Officers, failed to provide adequate police protection and/ or services to ensure that Claimant's fourth amendment rights were not violated. On the aforementioned date and time, claimant **PATRICK WALKER**, was a lawful tenant of premises located at 2558 Stedman Place, Bronx, New York, 10469, when he caught three unknown males removing his personal property from said apartment without his consent. Claimant contacted the NYPD for assistance. After the NYPD Officers arrived at said location, they were informed that the three men were agents of Federal National Mortgage Association located 1422, Dallas ("The Mortgage Company") and allowed them to commit a crime against **PATRICK WALKER** which resulted in substantial loss and damage to property. Claimant alleges that he was subject to discriminatory treatment by NYPD Officers that resulted in the commission of crime against him. ***Annexed hereto are photographs depicting the location and NYPD Officers conduct.***

That Claimant **PATRICK WALKER**, was caused to be injured by reason of THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENTS negligent and grossly inadequate supervision of their agents, servants, employees and those acting under their direction, behest, permission and control were negligent in the ownership, operation, inspection, management and control of employees, in particular THE NEW YORK CITY POLICE DEPARTMENT in failing to supervise the Police Officers; or failed to appropriately control its police officers;; or failed to try all reasonable interventions in these type of public incidents to prevent such events that arouse on the this date; or failed to carry out or implement an appropriately designed protocol ; or negligently or falsely arresting law abiding citizens without cause. That in addition to the negligent and inadequate supervision of their agents, servants, employees and those acting under their direction, behest, permission and control were negligent in the ownership, operation, inspection, management and control of employees, in particular THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were negligent in their hiring, training and supervision of the staff with the Patrol Borough Brooklyn Command.

THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were negligent in their entrustment of the responsibility of operation of said precinct.

THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT have a duty to provide trained staff and supervisors to oversee the police officers within its borough precincts. THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT have a duty to supervise the staff in said precinct.

That on October 8, 2016 in particular THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT breached their duties to the Claimant and as a result the Claimant suffered extensive loss of property, in particular THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants, employees and those acting under their direction, behest, permission and control were negligent in the ownership, operation, inspection, management and control of employees, in particular THE NEW YORK CITY POLICE DEPARTMENT command of the with the Patrolmen's Internship Borough Bronx Command, located in the borough of Bronx and the county of Bronx.

Upon information and belief, the poor supervision of THE NEW YORK CITY POLICE DEPARTMENT, contributed to the loss of property that Claimant, **PATRICK WALKER** incurred. The aforesaid accident involving the Claimant were due to the negligence, carelessness and recklessness of the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and their agents, servants and/or employees in the ownership, operation, management, maintenance, inspection and control of the aforesaid precinct and in breaching their duty to properly training, so as not to needlessly endanger and harm the patient's under their care, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT knew or should have known that an incident such as the instant one would or could occur; and in their lack of adequate supervision and failure to provide a safe environment; and the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT was otherwise careless and negligent in causing the serious injuries of Claimant **PATRICK WALKER**

Claimant, **PATRICK WALKER**, is and was independent person. However, due to the loss he incurred as a result of this accident, he suffered irreparable harm and financial losses.

And now, Claimant, **PATRICK WALKER** has sustained severe permanent damages, the full extent of which is not presently known, including but not limited to loss of use, damage to property and future economic losses. Claim is for compensatory and exemplary damages, and all other damages to which claimant is entitled to by case law and statute, all to her damage in the sum of FIFTY THOUSAND DOLLARS (\$50,000.00).

The undersigned Claimant therefore presents this claim for adjustment and payment. You are hereby notified that unless this matter is adjusted and paid within the time provided by law from the date of presentation to you, the claimant intends to commence an action of claim.

TOTAL AMOUNT CLAIMED: \$50,000.00

IF MORE THAN ONE ITEM IS INCLUDED IN THE TOTAL AMOUNT CLAIMED, SUPPLY BREAKDOWN OF AMOUNT AND SPECIFY ITEMS: (ATTACH ADDITIONAL SHEET(S) OF PAPER, IF NECESSARY)

<u>ITEM</u>	<u>AMOUNT</u>
• _____	\$ _____
• _____	\$ _____
• _____	\$ _____
• _____	\$ _____
• _____	\$ _____

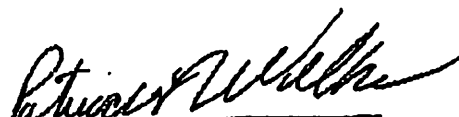
PLEASE ATTACH COPIES OF SUPPORTING DOCUMENTATION, PREVIOUS CORRESPONDENCE, INVOICES, ETC.

VERIFICATION

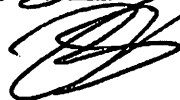
STATE OF NEW YORK)
) ss.:
COUNTY OF KINGS)

PATRICK WALKER, being duly sworn, deposes and says that the deponent is the Plaintiff in this action and has read this NOTICE OF CLAIM and knows its contents to be true to the best of deponent's knowledge, except as to those matters stated to be alleged upon information and belief and as to those matters, deponent believes them to be true.

Dated: December 9, 2016
Brooklyn, NY


PATRICK WALKER

Sworn to before me on this
day of December 9, 2016



NOTARY PUBLIC

BRIAN FIGEROUX
Notary Public, State of New York
No. 02FI5049815
Qualified in Kings County
Commission Expires Sept. 28, 2017







OFFICE OF THE COMPTROLLER CITY OF NEW YORK
CITY OF NEW YORK

-----X
PATRICK WALKER

Plaintiff(s),

-against-

The City of New York and The New York City
Police Department,

Defendant(s).

-----X

NOTICE OF CLAIM

Figeroux & Associates
Attorneys for Plaintiff PATRICK WALKER
26 Court Street, Suite 701
Brooklyn, New York 11242
Tel.: (718) 834-0190
Fax: (718) 222-3153

TO:
Office of the Comptroller
Division of Law – RM 1225 South
1 Centre Street
New York, NY 10007

New York City Police Department
1 Police Plaza
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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PATRICK WALKER

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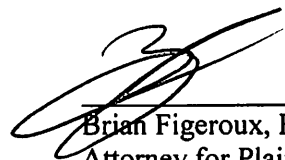
Defendant(s).

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SUMMONS AND VERIFIED COMPLAINT

To the best of my knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of these papers or the contentions therein are not frivolous as defined in subsection (c) of Section 130-1.1 of the Rules of the Chief Administrator (22NYCRR).

Dated: 30th day of October 2017



Brian Figeroux, Esq.
Attorney for Plaintiff
PATRICK WALKER
26 Court Street, Suite 701
Brooklyn, New York 11242
(718) 834-0190

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